



The State Bar
of California

OFFICE OF CHIEF TRIAL COUNSEL

180 Howard Street, San Francisco, CA 94105

415-538-2037

esther.fallas@calbar.ca.gov

February 1, 2024

Delivered via email

Kostiantyn Mars
PO Box 8081
San Jose CA 95155
Email: constantine.mars@gmail.com

RE: Case Number: 23-O-26303
Respondent: Nancy Lee Roberts

Dear Kostiantyn Mars:

The State Bar's Office of Chief Trial Counsel has reviewed your complaint against Nancy Lee Roberts to determine whether there are sufficient grounds to prosecute a possible violation of the State Bar Act and/or Rules of Professional Conduct.

In your complaint you state that Nancy Lee Roberts is the opposing counsel in your family law matter. You alleged that Nancy Lee Roberts is suspected of bribing the judge in your matter, and thus has a conflict of interest. Additionally, you alleged that Nancy Lee Roberts falsified court documents, lied to the court, and is facilitating child abductions.

Based on our evaluation of the information provided, we are closing your complaint against Nancy Lee Roberts. In order to investigate allegations of lawyer misconduct, the State Bar needs specific facts which, if proved, would establish a violation of the lawyer's ethical duties. Conclusions based on speculation and not supported by facts are insufficient to warrant investigation. We have determined that your complaint does not present facts to support investigation of your complaint.

Additionally, please be advised that the State Bar cannot review or change the decisions of the civil courts. If you are not satisfied with the outcome of your matter, the court having the proper jurisdiction, including possibly a Court of Appeal, is the appropriate place to raise any

further claims you may wish to pursue. The Office of Chief Trial Counsel does not have jurisdiction or authority to review or change the court's decision.

If you have new facts and circumstances that you believe may change our determination to close your complaint, you may submit a written statement with the new information to the Intake Unit for review. If you have any questions about this process, you may call Trial Counsel Esther Fallas at 415-538-2037. If you leave a voice message, be sure to clearly identify the lawyer complained of, the case number assigned, and your telephone number including the area code. We should return your call within two business days.

If you have presented all of the information that you wish to have considered, and you disagree with the decision to close your complaint, you may request that the State Bar's Complaint Review Unit review your complaint. The Complaint Review Unit will recommend that your complaint be reopened if it determines that further investigation is warranted. To request review by the Complaint Review Unit, you must submit your request in writing, either:

- 1) Via email: Within 90 days of the date of this letter, by email to: CRU@calbar.ca.gov; or
- 2) Via United States Mail: Post-marked within 90 days of the date of this letter, by United States Mail to:

The State Bar of California
Complaint Review Unit
Office of General Counsel
180 Howard Street
San Francisco, CA 94105-1617

If you decide to send new information or documents to this office, the 90-day period will continue to run during the time that this office considers the new material. You may wish to consult with legal counsel for advice regarding any other available remedies. You may contact your local or county bar association to obtain the names of lawyers to assist you in this matter.

We would appreciate if you would complete a short, anonymous survey about your experience with filing your complaint. While your responses to the survey will not change the outcome of the complaint you filed against the lawyer, the State Bar will use your answers to help improve the services we provide to the public. The survey can be found at <https://www.calbar.org/octc/intake>.

Kostiantyn Mars

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Thank you for bringing your concerns to the attention of the State Bar.

Sincerely,

A handwritten signature in black ink, appearing to read 'Esther Fallas', written in a cursive style.

Esther Fallas

Trial Counsel